INCYTE CORP. et al v. SANDOZ INC.

Plaintiff:	INCYTE HOLDINGS CORP. and INCYTE CORP.
Defendant:	SANDOZ INC.
Case Number:	1:2026cv14205
Filed:	October 30, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Christine P. O'Hearn
Referring Judge:	Matthew J. Skahill
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

Date Filed	Document Text
October 30, 2026	**Filing 2** Corporate Disclosure Statement by INCYTE CORP., INCYTE HOLDINGS CORP.. (LIZZA, CHARLES)
October 30, 2026	**Filing 1** COMPLAINT against SANDOZ INC. (Filing and Admin fee $ 405 receipt number ANJDC-18139451) , Related Case Selected, filed by INCYTE HOLDINGS CORP., INCYTE CORP.. (Attachments: #1 Exhibit A, #2 Exhibit B, #3 Exhibit C, #4 Civil Cover Sheet)(LIZZA, CHARLES)
October 30, 2026	Judge Christine P. O'Hearn and Magistrate Judge Matthew J. Skahill added. (dmw)

I. Executive Summary and Procedural Information

- Parties & Counsel:
  - Plaintiff: Incyte Corporation and Incyte Holdings Corporation (Delaware)
  - Defendant: Sandoz Inc. (Delaware)
  - Plaintiff's Counsel: Saul Ewing LLP
- Case Identification: X:XX-cv-XXXXX, D.N.J., 10/30/2026
- Venue Allegations: Venue is based on Defendant Sandoz Inc. maintaining a principal place of business, a regular and established physical place of business, and conducting systematic and continuous business in the District of New Jersey.
- Core Dispute: Plaintiff alleges that Defendant's filing of an Abbreviated New Drug Application (ANDA) to market a generic version of Plaintiff's Jakafi® (ruxolitinib) drug product infringes three patents covering specific salt forms of the active ingredient and methods of their use.
- Technical Context: The technology relates to specific salt formulations of ruxolitinib, a Janus kinase (JAK) inhibitor used to treat myeloproliferative disorders and other conditions by modulating the JAK-STAT signaling pathway.
- Key Procedural History: This is a Hatch-Waxman action initiated in response to Sandoz's submission of ANDA No. 221379 with a Paragraph IV certification, alleging that the patents-in-suit are invalid and/or not infringed. The complaint notes that the patents are listed in the FDA's Orange Book for Jakafi® and references other pending litigation filed by Incyte against different generic manufacturers for the same drug product.

Case Timeline

Date	Event
2007-06-13	Earliest Priority Date ('693, '481, '013 Patents)
2014-05-13	U.S. Patent No. 8,722,693 Issues
2014-09-02	U.S. Patent No. 8,822,481 Issues
2014-09-09	U.S. Patent No. 8,829,013 Issues
2026-10-30	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 8,722,693 - "Salts of the Janus kinase inhibitor...", issued May 13, 2014

The Invention Explained

- Problem Addressed: The patent's background section notes a continual need for "new or improved forms of existing Janus kinase inhibitors" to develop more effective pharmaceutical formulations for cancer and other diseases '693 Patent, col. 2:17-24
- The Patented Solution: The invention provides specific salt forms of the ruxolitinib compound, including maleic, sulfuric, and phosphoric acid salts '693 Patent, col. 2:30-38 These salts are described as having advantageous properties over the free base form, such as being "highly crystalline," which can facilitate manufacturing, improve stability, and ensure consistent dissolution for reliable drug delivery '693 Patent, col. 3:1-9 Example 2 details the preparation of the phosphoric acid salt '693 Patent, col. 11:12-32
- Technical Importance: The creation of a stable, highly crystalline salt form is a critical step in pharmaceutical development, enabling the creation of a robust, reliable, and manufacturable oral solid dosage form from a promising chemical entity.

Key Claims at a Glance

- The complaint does not specify which claims it will assert, reserving the right to allege infringement of "one or more" claims '693 Patent, prayer 1 Independent claims 1 and 5 appear central to a dispute over a generic composition.
- Independent Claim 1: "A (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile phosphoric acid salt."
- Independent Claim 5: "A crystalline (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile phosphoric acid salt."

U.S. Patent No. 8,822,481 - "Salts of the Janus kinase inhibitor...", issued September 2, 2014

The Invention Explained

- Problem Addressed: Similar to the '693 Patent, the '481 Patent addresses the need for improved pharmaceutical formulations of JAK inhibitors for treating diseases related to JAK activity '481 Patent, col. 2:20-27
- The Patented Solution: The invention claims methods of treating diseases by modulating Janus kinase activity. Specifically, it covers the act of administering an

effective amount of the phosphoric acid salt of ruxolitinib to a patient to inhibit JAK1 and/or JAK2 ’481 Patent, abstract ’481 Patent, col. 4:5-15

- Technical Importance: This patent provides method-of-use protection, linking the specific, improved salt form of the drug to its therapeutic action of inhibiting JAK enzymes in a patient.

Key Claims at a Glance

- The complaint does not specify which claims it will assert. Independent claim 1 is representative of the patent's scope.
- Independent Claim 1:
    - A method of inhibiting JAK1 and/or JAK2 in a patient in need thereof,
    - comprising administering to said patient an effective amount of a compound that is (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile phosphoric acid salt.

U.S. Patent No. 8,829,013 - "Salts of the Janus kinase inhibitor...", issued September 9, 2014

- Technology Synopsis: This patent claims methods of treating specific myeloproliferative disorders, such as polycythemia vera (PV) and essential thrombocythemia (ET), by administering a therapeutically effective amount of the phosphoric acid salt of ruxolitinib ’013 Patent, abstract ’013 Patent, claim 1 This provides disease-specific method protection for the use of the drug.
- Asserted Claims: The complaint does not specify claims; Independent Claim 1 is representative.
- Accused Features: The accused activity is the future making, using, or selling of Sandoz's generic product, with the allegation that its label will instruct physicians and patients to use it for the treatment of the claimed myeloproliferative disorders, thereby inducing infringement Compl. ¶¶25 Compl. ¶50

III. The Accused Instrumentality

- Product Identification: The accused products are Sandoz's proposed generic versions of Incyte's Jakafi® (ruxolitinib) drug products, in 5 mg, 10 mg, 15 mg, 20 mg, and 25 mg tablet strengths, as described in Sandoz's ANDA No. 221379 ("Sandoz's Proposed Products") Compl. ¶1
- Functionality and Market Context: The complaint identifies the Sandoz products as generic versions of Jakafi®, a Janus kinase inhibitor Compl. ¶1 Compl. ¶23 The infringement action was triggered by Sandoz's filing of an ANDA with a Paragraph IV certification,

which is a formal assertion by Sandoz that its product will not infringe Incyte's patents or that the patents are invalid, signaling its intent to market the generic drug prior to patent expiry Compl. ¶¶26-27 The patents-in-suit are listed in the FDA's "Orange Book" with respect to Jakafi®, putting potential generic manufacturers on notice of these patents Compl. ¶10

- No probative visual evidence provided in complaint.

IV. Analysis of Infringement Allegations

The complaint, characteristic of initial filings in Hatch-Waxman litigation, does not provide a detailed, element-by-element infringement analysis. Infringement is asserted based on the statutory act of filing an ANDA under 35 U.S.C. § 271(e)(2)(A) Compl. ¶29 Compl. ¶38 Compl. ¶47 The substantive allegation is that the product described in the ANDA, if approved and marketed, would infringe the asserted patents. The following tables summarize this infringement theory for the lead patents.

'693 Patent Infringement Allegations

Claim Element (from Independent Claim 5)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A crystalline (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile phosphoric acid salt.	The complaint alleges that Sandoz's submission of ANDA No. 221379 to obtain approval for its generic ruxolitinib products is an act of infringement. This implies that Sandoz's Proposed Products contain the claimed crystalline phosphoric acid salt.	¶29	col. 12:40-44

'481 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of inhibiting JAK1 and/or JAK2 in a	The complaint alleges that Sandoz's Proposed Products will	¶25; ¶41	col. 12:1-7

patient in need thereof, comprising administering... an effective amount of a compound that is... phosphoric acid salt.	include prescribing information that instructs and encourages physicians and patients to administer the drug, which will induce infringement of the claimed method.

- Identified Points of Contention:
    - Technical Question: A primary technical question for the '693 Patent will be whether the active pharmaceutical ingredient (API) in Sandoz's ANDA product is, in fact, the specific crystalline phosphoric acid salt of ruxolitinib as claimed. This determination will rely on chemical and physical analysis (e.g., XRPD, DSC) of Sandoz's product.
    - Scope Questions: For the method-of-use patents ('481 Patent; '013 Patent), a central issue may be whether the language in Sandoz's proposed product label will be found by the court to actively "instruct" or "encourage" administration in a manner that directly corresponds to the steps of the asserted method claims, which is the legal standard for proving induced infringement.

V. Key Claim Terms for Construction

The complaint does not identify any claim terms as being in dispute. However, based on the patent claims and the nature of the litigation, the following terms may become focal points of claim construction.

- The Term: "phosphoric acid salt" (e.g., '693 Patent, Claim 1)
    - Context and Importance: The identity of the salt form is the foundation of the patents-in-suit. Practitioners may focus on this term because its scope will determine whether various stoichiometries (e.g., a 1:1 salt vs. a 2:1 salt), hydrates, or solvates of the phosphoric acid salt are covered by the claims. The resolution of this issue is fundamental to the infringement analysis.
    - Intrinsic Evidence for a Broader Interpretation: The claim language itself does not specify a particular stoichiometric ratio, which may support an interpretation covering any stable phosphoric acid salt form of the compound.
    - Intrinsic Evidence for a Narrower Interpretation: The patent's working examples, such as Example 2, describe the preparation and characterization of a 1:1 salt, and a defendant may argue that the claims should be limited to the specific embodiment disclosed and enabled in the specification '693 Patent, col. 11:12-32

- The Term: "crystalline" (e.g., ’693 Patent, Claim 5)
    - Context and Importance: This term distinguishes the claimed invention from amorphous forms or solutions. Practitioners may focus on this term because pharmaceutical disputes often involve arguments about whether a generic product’s API meets the specific definition of "crystalline" as understood in the art and as defined by the patent, including potential disputes over specific polymorphs, degree of crystallinity, and interpretation of analytical data like XRPD patterns.
    - Intrinsic Evidence for a Broader Interpretation: The specification uses the term without providing a narrow definition, which may support applying its plain and ordinary meaning as a solid characterized by a long-range, ordered, three-dimensional structure.
    - Intrinsic Evidence for a Narrower Interpretation: A defendant may argue that "crystalline" is implicitly limited to the form characterized by the analytical data referenced in the examples, such as the sharp melting peak observed via Differential Scanning Calorimetry (DSC) ’693 Patent, col. 11:28-30, potentially limiting the claim to a specific polymorphic form.

VI. Other Allegations

- Indirect Infringement: The complaint alleges both induced and contributory infringement for all three patents-in-suit. The claim for inducement is based on the allegation that Sandoz’s product labeling will instruct medical professionals and patients to administer the generic drug in a manner that infringes the method claims Compl. ¶¶32 Compl. ¶41 Compl. ¶50 The claim for contributory infringement is based on the allegation that Sandoz's product is especially adapted for an infringing use and has no substantial non-infringing use Compl. ¶¶33 Compl. ¶42 Compl. ¶51
- Willful Infringement: The complaint does not contain an explicit count for willful infringement. However, it alleges that Sandoz had knowledge of the patents, as evidenced by its Paragraph IV certification notice sent to Incyte Compl. ¶27 It further requests that the case be found "exceptional" to recover attorneys' fees under 35 U.S.C. § 285 Compl. ¶¶36 Compl. ¶45 Compl. ¶54, an allegation that often involves conduct similar to that supporting a willfulness claim.

VII. Analyst’s Conclusion: Key Questions for the Case

This case, initiated under the Hatch-Waxman Act, will likely center on the following key questions for the court:

- A core issue will be one of chemical identity: Can Incyte prove, by a preponderance of the evidence, that the ruxolitinib API in Sandoz's ANDA product is the specific "phosphoric acid salt" and, potentially, the "crystalline" form, as required by the asserted composition claims?
- A second central question will concern induced infringement: Assuming the product contains the claimed salt, will the final FDA-approved prescribing information for Sandoz’s product contain language that instructs or encourages its administration for inhibiting JAK enzymes or treating myeloproliferative disorders, thereby inducing infringement of the asserted method claims?
- Finally, a determinative question will be one of validity: Can Sandoz demonstrate with clear and convincing evidence that the asserted claims are invalid, likely by arguing that the claimed salt forms were obvious modifications of the known ruxolitinib free base compound?

Charles M. Lizza
Sarah A. Sullivan
Alexander L. Callo
SAUL EWING LLP
650 College Road East, Suite 4000
Princeton, NJ 08540
(973) 286-6700
clizza@saul.com

Attorneys for Plaintiffs
Incyte Corporation and
Incyte Holdings Corporation

UNITED STATES DISTRICT COURT
DISTRICT OF NEW JERSEY

INCYTE CORP. and INCYTE HOLDINGS CORP.,	**Civil Action No. _____**
Plaintiffs,	**COMPLAINT FOR PATENT INFRINGEMENT**
v.	
SANDOZ INC.,	**(Filed Electronically)**
Defendant.	

Plaintiffs Incyte Corporation and Incyte Holdings Corporation (together, "Incyte"), by their undersigned attorneys, for their Complaint against Defendant Sandoz Inc. ("Sandoz" or "Defendant"), allege as follows:

Nature of the Action

1. This is an action for patent infringement under the patent laws of the United States, 35 U.S.C. § 100, *et seq.*, arising from Sandoz's submission of Abbreviated New Drug Application ("ANDA") No. 221379 ("Sandoz's ANDA") to the United States Food and Drug Administration ("FDA") seeking approval to manufacture, use, import, distribute, offer to sell, and/or sell a generic version of Incyte's Jakafi® (ruxolitinib) drug products, 5 mg, 10 mg, 15 mg, 20 mg, and 25 mg tablets, prior to the expiration of United States Patent Nos. 8,722,693 (the "'693 patent"); 8,822,481 (the "'481 patent"); and 8,829,013 (the "'013 patent") (collectively, the "patents-in-suit"). The patents-in-suit are owned by Incyte Corporation and/or Incyte Holdings Corporation.

The Parties

2. Plaintiff Incyte Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803.

3. Plaintiff Incyte Holdings Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803.

4. On information and belief, Defendant Sandoz Inc. is a corporation organized and existing under the laws of the State of Delaware, with a principal place of business at 100 College Rd. West, Princeton, NJ 08540.

The Patents-in-Suit

5. On May 13, 2014, the United States Patent and Trademark Office ("USPTO") duly and lawfully issued the '693 patent, entitled, "Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile." A copy of the '693 patent is attached hereto as Exhibit A.

6. On September 2, 2014, the USPTO duly and lawfully issued the '481 patent, entitled, "Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile." A copy of the '481 patent is attached hereto as Exhibit B.

   On September 9, 2014, the USPTO duly and lawfully issued the '013 patent, entitled, "Salts of the Janus kinase inhibitor (R)-3-(4-(7H-pyrrolo[2,3-d]pyrimidin-4-yl)-1H-pyrazol-1-yl)-3-cyclopentylpropanenitrile." A copy of the '013 patent is attached hereto as Exhibit C.

7. Pursuant to 35 U.S.C. § 282, each of the patents-in-suit is presumed valid.

The Jakafi® Drug Products

9. Incyte Corporation holds an approved New Drug Application ("NDA") under Section 505(a) of the Federal Food Drug and Cosmetic Act ("FFDCA"), 21 U.S.C. § 355(a) for Jakafi® (ruxolitinib) (NDA No. 202192).

10. Pursuant to 21 U.S.C. § 355(b)(1) and attendant FDA regulations, the patents-in-suit are listed in the FDA publication entitled "Approved Drug Products with Therapeutic Equivalence Evaluations" (the "Orange Book"), with respect to Jakafi®.

11. The FDA-approved prescribing information for Jakafi® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer Jakafi® according to one or more of the methods claimed in the patents-in-suit.

Jurisdiction and Venue

12. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202.

13. This Court has personal jurisdiction over Sandoz Inc. because Sandoz maintains its principal place of business and a regular and established place of business in New Jersey, conducts business in New Jersey, has systematic and continuous contacts with New Jersey, and has purposefully availed itself of the rights, benefits, and privileges of New Jersey.

14. On information and belief, Sandoz purposefully has conducted, and continues to conduct, business in this Judicial District.

15. On information and belief, Sandoz is in the business of, among other things, manufacturing, marketing, importing, offering for sale, and selling pharmaceutical products, including generic drug products, throughout the United States, including in this Judicial District.

16. On information and belief, Sandoz submitted ANDA No. 221379 seeking FDA approval to engage in the manufacture, use, importation, distribution, offer to sell, and/or sale of the generic drug products that are the subject of Sandoz's ANDA ("Sandoz's Proposed Products"), throughout the United States, including in New Jersey and in this Judicial District, prior to the expiration of the patents-in-suit.

17. On information and belief, this Judicial District is a likely destination for Sandoz's Proposed Products.

18. On information and belief, Sandoz intends to benefit directly if its ANDA is approved by participating in the manufacture, importation, distribution, and/or sale of Sandoz's Proposed Products.

19. On information and belief, Sandoz Inc. maintains a regular and established physical place of business at 100 College Rd. West, Princeton, New Jersey 08540.

20. On information and belief, Sandoz Inc. is registered with the State of New Jersey's Division of Revenue and Enterprise Services as a business operating in New Jersey under Business ID No. 0100097265 (1979) and 0101056767 (2020) and is registered with the New Jersey Department of Health as a manufacturer and wholesaler under Registration No. 5003732.

21. Sandoz has purposefully availed itself of the rights, benefits, and privileges of New Jersey, including by asserting counterclaims in this Court. See, e.g., *Opus Genetics, Inc., et al. v. Sandoz Inc.*, No. 3:26-cv-04811 (D.N.J.); *Xeris Pharmaceuticals, Inc., et al. v. Sandoz Inc., et al.*, No. 2:26-cv-02929 (D.N.J); *Amneal Pharmaceuticals LLC, et al. v. Sandoz Inc.*, No. 3:25-cv-17384 (D.N.J.); *Bausch & Lomb Inc., et al. v. Sandoz Inc.*, No. 2:25-cv-01167 (D.N.J.); *Jazz Pharmaceuticals Ireland Ltd., et al. v. Sandoz Inc. et al.*, No. 3:24-cv-09110 (D.N.J.); *Janssen Pharmaceuticals, et al. v. Sandoz Inc.*, No. 1:23-cv-02943 (D.N.J.); *Astellas Pharma Inc., et al. v. Sandoz Inc.*, No. 2:23-cv-01214 (D.N.J); *Merck Sharp & Dohme BV, et al. v. Sandoz Inc.*, No. 2:20-cv-03117 (D.N.J.); *Celgene Corp. v. Sandoz Inc.*, Civil Action No. 3:18-cv-11026 (D.N.J.); *Allergan Sales, LLC, et al. v. Sandoz, Inc.*, Civil Action No. 2:17-cv-10129 (D.N.J); *Mitsubishi Tanabe Pharma Corp., et al. v. Sandoz Inc.*, Civil Action No. 3:17-cv-05302 (D.N.J); *Sanofi-Aventis US LLC, et al. v. Sandoz Inc.*, No. 3:16-cv-05678 (D.N.J.).

22. For at least the foregoing reasons, venue is proper in this Judicial District for Sandoz Inc. pursuant to 28 U.S.C. §§ 1391 and/or 1400(b).

Acts Giving Rise to this Suit

23. Pursuant to Section 505 of the FFDCA, Sandoz submitted ANDA No. 221379 seeking approval to engage in the commercial manufacture, use, sale, offer for sale, and/or

importation into the United States of Sandoz's Proposed Products, which are proposed generic versions of Incyte's approved Jakafi® products, before the patents-in-suit expire.

24. On information and belief, following FDA approval of Sandoz's ANDA, Sandoz will make, use, sell, or offer to sell Sandoz's Proposed Products throughout the United States, and/or import such generic products into the United States.

25. On information and belief, following FDA approval of Sandoz's ANDA, Sandoz's Proposed Products will include prescribing information, similar to that for Jakafi®, that instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer Sandoz's Proposed Products according to one or more of the methods claimed in the patents-in-suit.

26. On information and belief, in connection with the submission of ANDA No. 221379 as described above, Sandoz provided written certifications to the FDA pursuant to Section 505 of the FFDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Sandoz's Paragraph IV Certifications"), alleging that the claims of the patents-in-suit are invalid and/or will not be infringed by the activities described in Sandoz's ANDA.

27. Sandoz subsequently sent to Incyte written notice of Sandoz's Paragraph IV Certifications for the patents-in-suit, alleging that the claims of those patents are invalid and/or will not be infringed by the activities described in Sandoz's ANDA. Sandoz's written notice to Incyte conveyed that Sandoz seeks approval to market Sandoz's Proposed Products before the patents-in-suit expire.

Count I: Infringement of the '693 Patent

28. Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

29. Sandoz's submission of ANDA No. 221379, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Sandoz's Proposed Products prior to the expiration of the '693 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

30. There is a justiciable controversy between the parties hereto as to the infringement of the '693 patent.

31. Unless enjoined by this Court, upon FDA approval of Sandoz's ANDA, Sandoz will infringe one or more claims of the '693 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Sandoz's Proposed Products in the United States.

32. Unless enjoined by this Court, upon FDA approval of Sandoz's ANDA, Sandoz will induce infringement of one or more claims of the '693 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Sandoz's Proposed Products in the United States. On information and belief, upon FDA approval of Sandoz's ANDA, Sandoz will intentionally encourage acts of direct infringement with knowledge of the '693 patent and knowledge that its acts are encouraging infringement.

33. Unless enjoined by this Court, upon FDA approval of Sandoz's ANDA, Sandoz will contributorily infringe one or more claims of the '693 patent under 35 U.S.C. § 271(c) by

making, using, offering to sell, selling, and/or importing Sandoz's Proposed Products in the United States. On information and belief, Sandoz has had and continues to have knowledge that Sandoz's Proposed Products are especially adapted for a use that infringes one or more claims of the '693 patent and that there is no substantial non-infringing use for Sandoz's Proposed Products.

34. Incyte will be substantially and irreparably damaged and harmed if Sandoz's infringement of the '693 patent is not enjoined.

35. Incyte does not have an adequate remedy at law.

36. This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count II: Infringement of the '481 Patent

37. Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

38. Sandoz's submission of ANDA No. 221379, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Sandoz's Proposed Products prior to the expiration of the '481 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

39. There is a justiciable controversy between the parties hereto as to the infringement of the '481 patent.

40. Unless enjoined by this Court, upon FDA approval of Sandoz's ANDA, Sandoz will infringe one or more claims of the '481 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Sandoz's Proposed Products in the United States.

41. Unless enjoined by this Court, upon FDA approval of Sandoz's ANDA, Sandoz will induce infringement of one or more claims of the '481 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Sandoz's Proposed Products in the United States. On information and belief, upon FDA approval of Sandoz's ANDA, Sandoz will intentionally encourage acts of direct infringement with knowledge of the '481 patent and knowledge that its acts are encouraging infringement.

42. Unless enjoined by this Court, upon FDA approval of Sandoz's ANDA, Sandoz will contributorily infringe one or more claims of the '481 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Sandoz's Proposed Products in the United States. On information and belief, Sandoz has had and continues to have knowledge that Sandoz's Proposed Products are especially adapted for a use that infringes one or more claims of the '481 patent and that there is no substantial non-infringing use for Sandoz's Proposed Products.

43. Incyte will be substantially and irreparably damaged and harmed if Sandoz's infringement of the '481 patent is not enjoined.

44. Incyte does not have an adequate remedy at law.

45. This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count III: Infringement of the '013 Patent

46. Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set forth herein.

47. Sandoz's submission of ANDA No. 221379, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Sandoz's Proposed Products prior to the expiration of the '013 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

48. There is a justiciable controversy between the parties hereto as to the infringement of the '013 patent.

49. Unless enjoined by this Court, upon FDA approval of Sandoz's ANDA, Sandoz will infringe one or more claims of the '013 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Sandoz's Proposed Products in the United States.

50. Unless enjoined by this Court, upon FDA approval of Sandoz's ANDA, Sandoz will induce infringement of one or more claims of the '013 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Sandoz's Proposed Products in the United States. On information and belief, upon FDA approval of Sandoz's ANDA, Sandoz will intentionally encourage acts of direct infringement with knowledge of the '013 patent and knowledge that its acts are encouraging infringement.

51. Unless enjoined by this Court, upon FDA approval of Sandoz's ANDA, Sandoz will contributorily infringe one or more claims of the '013 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Sandoz's Proposed Products in the United States. On information and belief, Sandoz has had and continues to have knowledge that Sandoz's Proposed Products are especially adapted for a use that infringes one or more claims of the '013 patent and that there is no substantial non-infringing use for Sandoz's Proposed Products.

52. Incyte will be substantially and irreparably damaged and harmed if Sandoz's infringement of the '013 patent is not enjoined.

53. Incyte does not have an adequate remedy at law.

54. This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

PRAYER FOR RELIEF

WHEREFORE, Incyte respectfully requests the following relief:

(A) A Judgment that Sandoz has infringed the patents-in-suit by submitting ANDA No. 221379 with the accompanying Paragraph IV Certifications and notice to Incyte of same;

(B) A Judgment that Sandoz has infringed, and that Sandoz's making, using, selling, offering to sell, and/or importing Sandoz's Proposed Products will infringe, one or more claims of the patents-in-suit;

(C) An Order that, pursuant to 35 U.S.C. § 271(e)(4)(A), the effective date of FDA approval of ANDA No. 221379 be a date that is not earlier than the later of the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(D) Preliminary and permanent injunctions enjoining Sandoz and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from making, using, offering to sell, selling, and/or importing Sandoz's Proposed Products until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(E) A permanent injunction, pursuant to 35 U.S.C. § 271(e)(4)(B), restraining and enjoining Sandoz, its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from practicing any of the subject matter claimed in the patents-in-suit, or from actively inducing or contributing to the infringement of any claim of the patents-in-suit, until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(F) A Judgment that the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of Sandoz's Proposed Products will directly infringe, induce infringement of, and/or contribute to infringement of the patents-in-suit;

(G) To the extent that Sandoz, its officers, agents, attorneys, and/or employees, or those acting in privity and/or concert with them, has committed any acts with respect to the subject matter claimed in the patents-in-suit, other than those acts expressly exempted by 35 U.S.C. § 271(e)(1), a Judgment awarding Incyte damages for such acts;

(H) If Sandoz, its officers, agents, attorneys, and/or employees, or those acting in privity and/or concert with them, engages in the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of Sandoz's Proposed Products prior to the expiration of the patents-in-suit, a Judgment awarding damages and any other monetary relief permitted by law to Incyte resulting from such infringement, together with interest;

(I) A Judgment declaring that the patents-in-suit remain valid and enforceable;

(J) A Judgment that this is an exceptional case pursuant to 35 U.S.C. § 285 and awarding Incyte its attorneys' fees incurred in this action;

(K) A Judgment awarding Incyte its costs and expenses incurred in this action;

(L) Such further and other relief as this Court mat deem just and proper.

Dated: October 30, 2026

By: ___s/Charles M. Lizza_____
Charles M. Lizza

Sarah A. Sullivan Sarah A. Sullivan
Alexander L. Callo
SAUL EWING LLP
650 College Road East, Suite 4000
Princeton, NJ 08540
Telephone: (973) 286-6700
Email: clizza@saul.com;
sarah.sullivan@saul.com;
alexander.callo@saul.com

OF COUNSEL:
Corrin N. Drakulich
Christina Brown-Marshall
FISH & RICHARDSON P.C.
1180 Peachtree St., NE
21st Floor
Atlanta, GA 30309
Telephone: (404) 892-5005
Email: drakulich@fr.com, brown-marshall@fr.com

Douglas E. McCann
Robert M. Oakes
Gregory R. Booker
Grayson Sundermeir
FISH & RICHARDSON P.C.
222 Delaware Avenue, 17th Floor
P.O. Box 1114
Wilmington, DE 19899
Telephone: (302) 652-5070
Email: dmccann@fr.com; oakes@fr.com, booker@fr.com; sundermeir@fr.com

Deanna Reichel
FISH & RICHARDSON P.C.
60 South 6th Street, Suite 3200
Minneapolis, MN 55402
Telephone: (612) 335-5070
Email: reichel@fr.com

Caitlin M. Dean
FISH & RICHARDSON P.C.
7 Times Square, 20th Floor
New York, NY 10036
Telephone: (212) 765-5070
Email: cdean@fr.com

Attorneys for Plaintiffs Incyte Corporation and Incyte Holdings Corporation

CERTIFICATION PURSUANT TO L. CIV. R. 11.2 & 40.1

Pursuant to Local Civil Rules 11.2 and 40.1, I hereby certify, to the best of my knowledge, that this matter is related to *Incyte Corp., et al. v. Apotex Inc.*, No. 24-4366 (CPO)(MJS) (D.N.J.) (consolidated), *Incyte Corp., et al. v. Hikma Pharms. USA Inc.*, No. 25-1859 (CPO)(MJS) (D.N.J.), *Incyte Corp., et al. v. Sun Pharmaceutical Industries, Inc., et al.*, No. 25-13225 (CPO)(MJS) (D.N.J.), *Incyte Corp., et al. v. Granules India Ltd.*, No. 25-13227 (CPO)(MJS) (D.N.J.), *Incyte Corp., et al. v. Eugia Pharma Specialities Limited, et al.*, No. 25-17833 (CPO)(MJS), *Incyte Corp., et al. v. Dr. Reddy's Laboratories, Inc. et al.*, No. 25-17832 (CPO)(MJS), *Incyte Corp., et al. v. Alkem Laboratories Ltd., et al.*, No. 26-2338 (CPO)(MJS), *Incyte Corp., et al. v. Alembic Pharmaceuticals Ltd., et al.*, No. 26-7841 (CPO)(MJS), *Incyte Corp., et al. v. MSN Pharmaceuticals Inc., et al.*, No. 26-7949 (CPO)(MJS), and *Incyte Corp., et al. v. Hetero USA, Inc., et al.*, No. 26-13702 (CPO)(MJS) because each of the foregoing cases involves or involved the same Plaintiffs and overlapping patents-in-suit, and because Defendants are seeking FDA approval to sell a generic version of the same drug product.

I further certify, to the best of my knowledge, that the matter in controversy is not the subject of any other action pending in any court, or of any pending arbitration or administrative proceeding.

Dated: October 30, 2026

By: ___s/Charles M. Lizza_____
Charles M. Lizza

Sarah A. Sullivan Sarah A. Sullivan
Alexander L. Callo
SAUL EWING LLP
650 College Road East, Suite 4000
Princeton, NJ 08540
Telephone: (973) 286-6700
Email: clizza@saul.com;
sarah.sullivan@saul.com;
alexander.callo@saul.com